IN THE COURT OF THE PRINCIPAL SESSIONS JUDGE, GREATER MUMBAI
CRIMINAL MISCELLANEOUS BAIL APPLICATION NO. 4102 OF 2026

IN THE MATTER OF:

1. Singhania Logistics & Infrastructure Pvt. Ltd.
Through its Managing Director, Shri Rajesh Singhania,
Having office at Nariman Point, Mumbai - 400021 ... **APPLICANT / ACCUSED**

VERSUS
1. THE STATE OF MAHARASHTRA
Through Police Inspector, Marine Lines Police Station, Mumbai

2. Apex Global Freight Carriers Pvt. Ltd.
Represented by Director Vikramaditya Rao ... **RESPONDENTS**

APPLICATION UNDER SECTION 438 OF THE CODE OF CRIMINAL PROCEDURE, 1973 (CORRESPONDING TO SECTION 482 OF BHARATIYA NAGARIK SURAKSHA SANHITA, 2023) FOR GRANT OF ANTICIPATORY BAIL IN FIR NO. 142/2026

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is a premier registered logistics provider operating across Maharashtra and Gujarat with exemplary statutory compliance and no criminal antecedents whatsoever. The Applicant employs over 350 personnel and maintains deep roots in society.

2. That on **12th September 2026**, Respondent No. 2 maliciously lodged **FIR No. 142/2026** at Marine Lines Police Station under **Sections 420 and 406 of the Indian Penal Code, 1860** (corresponding to Sections 316 and 318 of the Bharatiya Nyaya Sanhita, 2023), alleging criminal breach of trust and cheating regarding delayed shipment of heavy engineering components valued at **Rs. 45,00,000/-** (Rupees Forty-Five Lakhs only).

3. That the entire transaction between the parties is governed by a formal Master Commercial Transportation Agreement dated **15th January 2026** containing a mandatory Dispute Resolution and Arbitration Clause. The alleged consignment delay arose purely due to unprecedented monsoon landslides on the Konkan corridor between **18th August 2026 and 28th August 2026**, constituting a recognized *Force Majeure* event under Clause 14 of the contract.

4. That the Applicant had already refunded an interim mobilization advance of **Rs. 15,00,000/-** vide RTGS reference UTR-N26090142 on **2nd September 2026**, demonstrating genuine bona fide conduct and complete absence of fraudulent intention at the inception of the transaction.

5. That the Investigating Officer, in flagrant violation of the mandatory binding directives issued by the Hon'ble Supreme Court in ***Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273***, failed to serve any statutory notice of appearance under **Section 41A of the Cr.P.C.** (Section 35(3) BNSS) prior to issuing arrest threats against the Applicant's executives.

6. That as authoritatively held in ***Satender Kumar Antil v. CBI, (2022) 10 SCC 51*** and ***State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335***, criminal color cannot be foisted upon essentially civil and commercial contractual disputes. The ingredients of dishonest inducement under Section 420 IPC are wholly missing on the face of the FIR.

7. That the Applicant undertakes to fully cooperate with the investigating agency, join investigation as and when summoned, and strictly abide by all conditions stipulated under **Section 438(2) of the Cr.P.C.** The Applicant undertakes not to tamper with any witness or documentary evidence.

PRAYER

Wherefore, in the light of the facts and circumstances stated hereinabove, the Applicant most respectfully prays that this Hon'ble Court may graciously be pleased to:

(a) Order that in the event of arrest of the Applicant or its Managing Director Shri Rajesh Singhania in connection with FIR No. 142/2026 registered at Marine Lines Police Station, Mumbai, they be immediately released on Anticipatory Bail upon furnishing suitable solvent sureties;

(b) Grant ad-interim transit protection from custodial harassment pending disposal of the present application;

(c) Pass such other or further order(s) as this Hon'ble Court may deem fit and proper in the interest of justice.

ADVOCATE FOR THE APPLICANT
Adv. Priya Sharma
Enrollment No: MAH/4521/2021
High Court & Sessions Court, Mumbai

APPLICANT / DEPONENT
For Singhania Logistics Pvt. Ltd.
(Managing Director)
Date: 25th September 2026

VERIFICATION AFFIDAVIT

I, Rajesh Singhania, do hereby solemnly affirm and declare on oath that the contents of paragraphs 1 to 7 of the accompanying application are true and correct to the best of my knowledge and documentary records. Verified at Mumbai on this 25th day of September 2026.